

Privacy Policy

Sleepless Event Discovery Platform

Effective Date: January 5, 2025

Last Updated: January 5, 2025

1. Introduction

Welcome to Sleepless. Your privacy is important to us. This Privacy Policy explains how [Your Company Name](#) Ltd (“Sleepless,” “we,” “us,” or “our”) collects, uses, discloses, and protects your personal information when you use our mobile application, website, and related services (collectively, the “Services”).

By using the Services, you consent to the collection, use, and disclosure of your personal information as described in this Privacy Policy. If you do not agree with this Privacy Policy, please do not use the Services. This Privacy Policy is incorporated into and subject to our Terms of Service.

This Privacy Policy complies with the Protection of Personal Information Act, 2013 (POPIA) and other applicable South African data protection laws.

2. Information We Collect

We collect several types of information from and about Users of our Services, including personal information that can be used to identify you.

2.1 Information You Provide Directly

When you register for an account, purchase tickets, or use certain features of the Services, you may provide us with the following information:

Account Information: Your name, email address, username, password, phone number, date of birth, and profile picture.

Payment Information: Credit card number, billing address, and other payment details. Payment information is processed by third-party payment processors and is not stored on our servers.

Event Organizer Information: If you register as an Event Organizer, you may provide additional information such as company name, business registration number, tax identification number, bank account details, and event-related content (event descriptions, images, venue information).

User-Generated Content: Comments, reviews, ratings, messages, and other content you submit through the Services.

Communications: Information you provide when you contact us for customer support, feedback, or inquiries.

2.2 Information Collected Automatically

When you access or use the Services, we automatically collect certain information about your device and usage:

Device Information: Device type, operating system, unique device identifiers (UDID, IMEI), mobile network information, and IP address.

Usage Data: Pages viewed, features accessed, time spent on the Services, search queries, event views, ticket purchases, and interaction with notifications.

Location Information: With your permission, we may collect precise geolocation data from your device to provide location-based features such as nearby events and venue directions. You can disable location services in your device settings at any time.

Cookies and Tracking Technologies: We use cookies, web beacons, and similar technologies to collect information about your browsing behavior and preferences. You can manage cookie preferences through your browser settings.

2.3 Information from Third Parties

We may receive information about you from third-party sources, including:

Social Media Platforms: If you choose to log in using Google or Apple Sign-In, we may receive your name, email address, profile picture, and other information you authorize the platform to share.

Event Organizers: Event Organizers may provide us with information about ticket purchases, event attendance, and customer interactions.

Analytics Providers: We use third-party analytics services (such as Google Analytics, Firebase Analytics) to understand how Users interact with the Services.

3. How We Use Your Information

We use the information we collect for the following purposes:

3.1 To Provide and Improve the Services

We use your information to operate, maintain, and improve the Services, including to:

- Create and manage your account
- Process ticket purchases and bookings
- Generate QR Code tickets for event admission
- Facilitate communication between Event Organizers and Attendees
- Provide customer support and respond to inquiries
- Personalize your experience and recommend events based on your preferences
- Analyze usage patterns and improve app functionality

3.2 To Communicate with You

We use your contact information to send you:

- Transactional emails and notifications (order confirmations, ticket receipts, event reminders)
- Service-related announcements (app updates, policy changes, security alerts)
- Marketing communications (event recommendations, promotions, newsletters) – you may opt out at any time

- Push notifications (event reminders, booking updates) – you can disable push notifications in your device settings

3.3 To Process Payments

We use your payment information to process ticket purchases and service fees. Payment processing is handled by third-party payment processors who comply with PCI-DSS standards.

3.4 To Ensure Security and Prevent Fraud

We use your information to detect, prevent, and respond to fraud, security incidents, and other harmful activities. This includes verifying ticket authenticity through QR Code validation and monitoring for suspicious account activity.

3.5 To Comply with Legal Obligations

We may use and disclose your information to comply with applicable laws, regulations, legal processes, or governmental requests, including responding to subpoenas, court orders, or law enforcement inquiries.

3.6 For Analytics and Research

We use aggregated and anonymized data to conduct research, analyze trends, and generate insights about event attendance, user behavior, and platform performance.

4. How We Share Your Information

We do not sell your personal information to third parties. However, we may share your information in the following circumstances:

4.1 With Event Organizers

When you purchase a ticket or register for an event, we share your name, email address, and booking details with the Event Organizer to facilitate event admission and communication.

4.2 With Service Providers

We engage third-party service providers to perform functions on our behalf, including:

- Payment processing (e.g., PayFast, Yoco, Stripe)
- Cloud hosting and data storage (e.g., AWS, Google Cloud)
- Analytics and performance monitoring (e.g., Google Analytics, Firebase)
- Email and push notification services (e.g., SendGrid, Firebase Cloud Messaging)
- Customer support platforms

These service providers have access to your personal information only to perform specific tasks on our behalf and are obligated to protect your information in accordance with this Privacy Policy.

4.3 For Legal Reasons

We may disclose your information if required to do so by law or in response to valid requests by public authorities (e.g., a court, government agency, or law enforcement). We may also disclose your information to:

- Enforce our Terms of Service and other agreements
- Protect the rights, property, or safety of Sleepless, our Users, or the public
- Detect, prevent, or address fraud, security, or technical issues

4.4 In Business Transfers

If Sleepless is involved in a merger, acquisition, asset sale, or bankruptcy, your personal information may be transferred to the acquiring entity. We will notify you of any such change in ownership or control of your personal information.

4.5 With Your Consent

We may share your information with third parties when you provide explicit consent, such as when you choose to share event details on social media platforms.

5. Data Retention

We retain your personal information for as long as necessary to fulfill the purposes outlined in this Privacy Policy, unless a longer retention period is required or permitted by law.

Account Information: We retain your account information for as long as your account is active or as needed to provide you with the Services. If you delete your account, we will delete or anonymize your personal information within ninety (90) days, except where we are required to retain it for legal, regulatory, or security purposes.

Transaction Records: We retain transaction records (ticket purchases, payment information) for a minimum of five (5) years to comply with South African tax and accounting regulations.

Usage Data: We retain usage data and analytics for up to two (2) years for performance monitoring and service improvement purposes.

Legal Holds: If your information is subject to a legal hold, investigation, or dispute, we will retain it until the matter is resolved.

6. Your Rights and Choices

Under POPIA and other applicable data protection laws, you have the following rights regarding your personal information:

6.1 Right to Access

You have the right to request access to the personal information we hold about you. You can view and update your account information at any time through the App settings.

6.2 Right to Correction

You have the right to request correction of inaccurate or incomplete personal information. You can update your profile information directly in the App or contact us at [privacy@sleepless.co.za].

6.3 Right to Deletion

You have the right to request deletion of your personal information, subject to certain exceptions (e.g., legal obligations, ongoing transactions). To delete your account, go to Settings > Account > Delete Account, or contact us at [privacy@sleepless.co.za].

6.4 Right to Object

You have the right to object to the processing of your personal information for direct marketing purposes. You can opt out of marketing emails by clicking the “unsubscribe” link in any promotional email or by updating your communication preferences in the App.

6.5 Right to Data Portability

You have the right to request a copy of your personal information in a structured, commonly used, and machine-readable format. To request a data export, contact us at [privacy@sleepless.co.za].

6.6 Right to Withdraw Consent

If we process your personal information based on your consent, you have the right to withdraw that consent at any time. This will not affect the lawfulness of processing based on consent before its withdrawal.

6.7 Right to Lodge a Complaint

If you believe we have not handled your personal information in accordance with POPIA, you have the right to lodge a complaint with the Information Regulator of South Africa:

Information Regulator (South Africa)

Email: infoereg@justice.gov.za

Website: <https://www.justice.gov.za/infoereg/>

7. Security of Your Information

We take the security of your personal information seriously and implement appropriate technical and organizational measures to protect it against unauthorized access, alteration, disclosure, or destruction. These measures include:

- Encryption of data in transit (TLS/SSL) and at rest (AES-256)
- Secure authentication mechanisms (password hashing, multi-factor authentication)
- Regular security audits and vulnerability assessments
- Access controls and role-based permissions for employees and service providers
- Monitoring and logging of system activity for suspicious behavior

However, no method of transmission over the internet or electronic storage is completely secure. While we strive to protect your personal information, we cannot guarantee its absolute security. You are responsible for maintaining the confidentiality of your account credentials and for any activities that occur under your account.

8. Children's Privacy

The Services are not intended for use by individuals under the age of eighteen (18). We do not knowingly collect personal information from children under eighteen (18). If we become aware that we have inadvertently collected personal information from a child under eighteen (18), we will take steps to delete such information as soon as possible. If you believe we have collected information from a child under eighteen (18), please contact us at [privacy@sleepless.co.za].

9. International Data Transfers

Your personal information may be transferred to and processed in countries other than South Africa, including countries that may not have the same level of data protection as South Africa. When we transfer your information internationally, we ensure that appropriate safeguards are in place, such as:

- Standard contractual clauses approved by the Information Regulator
- Adequacy decisions recognizing equivalent data protection standards
- Binding corporate rules for intra-group transfers

By using the Services, you consent to the transfer of your personal information to countries outside South Africa for the purposes described in this Privacy Policy.

10. Third-Party Links and Services

The Services may contain links to third-party websites, applications, or services that are not operated by Sleepless. We are not responsible for the privacy practices of these third parties. We encourage you to review the privacy policies of any third-party services you access through the Services.

Social Media Platforms: If you interact with social media features on the Services (e.g., sharing events on Facebook, Instagram), the social media platform may collect information about you in accordance with its own privacy policy.

Payment Processors: Payment information is processed by third-party payment processors (e.g., PayFast, Yoco, Stripe) in accordance with their privacy policies and PCI-DSS standards.

11. Changes to This Privacy Policy

We may update this Privacy Policy from time to time to reflect changes in our practices, legal requirements, or business operations. We will notify you of material changes by:

- Posting the updated Privacy Policy on the App and website
- Sending you an email notification to the address associated with your account
- Displaying an in-app notification upon your next login

The “Last Updated” date at the top of this Privacy Policy indicates when it was last revised. Your continued use of the Services after the effective date of the updated

Privacy Policy constitutes your acceptance of the changes. If you do not agree to the updated Privacy Policy, you must stop using the Services.

12. Contact Us

If you have any questions, concerns, or requests regarding this Privacy Policy or our data practices, please contact us at:

Sleepless

Data Protection Officer

Email: [privacy@sleepless.co.za]

Address: [Your Company Address]

Phone: [Your Contact Number]

For complaints or inquiries related to POPIA compliance, you may also contact the Information Regulator of South Africa:

Information Regulator (South Africa)

Email: infoereg@justice.gov.za

Website: <https://www.justice.gov.za/infoereg/>

Phone: +27 (0)10 023 5200

13. Consent

By using the Services, you acknowledge that you have read and understood this Privacy Policy and consent to the collection, use, and disclosure of your personal information as described herein.

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